

JDF 477	Motion to Seal Non-Conviction Records (Simplified Process for Non-Convictions)	
A. Court participate case info review zone Type: (ex: County or District) Colorado County: Court Address:		Clerk's Event Code: MTSL This box is for court use only.
B. Parties to the Case Plaintiff: People of the State of Colorado vs. Defendant:		
		C. Case Details Number: Division/Courtroom:

1. Background

I file this motion under Colorado Revised Statutes (C.R.S.) sections (§§) 24-72-705 or, for convictions vacated through C.R.S. § 18-1-410.7(5)(b), C.R.S. § 24-72-707.

2. My Information *(the Defendant)*

Full Name:

Birth Date:

Mailing Address:

City, State, & Zip:

Phone:

Email:

Do you need an interpreter? ☐ No ☐ Yes, in *(language)*

I want to attend court events: ☐ In-person ☐ Virtually *(by phone or web video)*

To switch your choice:

Use form *JDF 76 – General Motion*. File at least 48 hours before an event.

3. Grounds for Sealing Records

☐ I was acquitted of all charges on *(date)*

☐ The case was completely dismissed on *(date)*

and the dismissal was not part of a plea agreement in a separate case.

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☐ The Court vacated my conviction in this case because it found I was the victim of human trafficking when the offense occurred. C.R.S. § 18-1-410.7(5)(b).

☐ I completed a diversion agreement on (date)
participant/case info review zone

☐ I completed a deferred judgment and sentence on (date)

and the deferred judgment and sentence does not pertain to any of the following offenses:

- a) Traffic control laws related to the holder of a commercial driver's license or the operator of a commercial motor vehicle under C.R.S. § 42-2-402.
- b) A felony offense for which the factual basis involved unlawful sexual behavior under C.R.S. § 16-22-102(9).

☐ I was also convicted of a traffic offense in this case, but I seek to seal the remaining charges per C.R.S. § 24-72-705(3).

4. Affirmations

I affirm that:

- a) I do not owe any restitution, or the Court has vacated such order(s).
- b) The records, in this case, do not pertain to underage ethyl alcohol, marijuana, and paraphernalia offenses that are subject to the procedure set forth in C.R.S. § 18-13-122, and this case contains at least one charge that is not a class 1 misdemeanor traffic offense, class 2 misdemeanor traffic offense, class A traffic infraction, or class B traffic infraction. Charges in this case were not dismissed pursuant to C.R.S. § 16-8.5-116.

5. Records to be Sealed

Agencies having records related to this case are: *(check all that apply)*

☐ Prosecuting Attorney

☐ Sheriff's Department
Mailing Address:

☐ Colorado Bureau of Investigation **(Required)**
ATTN Identification-Seals, 690 Kipling St. STE 3000, Lakewood, CO 80215

☐ Law Enforcement: (Agency Name)

Agency Mailing Address:

Agency Case Number:

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☐ Other: (Name)

Mailing Address:

participant/case info review zone

Arrest Number: (from fingerprint card)

Date of Arrest:

I respectfully request that any criminal justice records, except identifying information, related to this case be sealed promptly.

6. Certificate of Service

On (enter service date)

I certify that I sent a copy of this document to the prosecuting attorney by: (select one)

- ☐ Colorado Courts E-Filing. (only available to lawyers)
- ☐ Regular Mail, addressed to:
Full address:
- ☐ Other: (explain)

7. Verified Signature

I declare under penalty of perjury under the law of Colorado that the foregoing is true and correct.

Executed on the (date) day of (month) (year)
at City: (or other location)
and State: (or country)

Print Your Name:

Your Signature:

Counsel Signature: (if any)

signature/date review zone